

We have omitted many other records, but because they be of like nature we have contented our self with these. And now we will consult with our book cases, and reports of law: wherein either *coram rege et concilio*, or *coram rege et concilio in camera stellata*, is named.

Book cases and reports of law.

39 E. 3. fo. 14. 19 aff. pl. 1. 40 aff. 38. 13 E. 4. 9. *in camera stellata*. Vid. 27 E. 3. cap. 13. 21 E. 4. 71. *in camera stellata*. 2 R. 3. fo. 2. & 11. *in camera stellata*. 1 H. 7. 3. *in camera stellata*. This court in ancient times sat but rarely, for three causes. First, for that enormous and exorbitant causes which this court dealt withall only in those days rarely fell out. Secondly, this court dealt not with such causes, as other courts of ordinary justice might condignely punish, *ne dignitas hujus curiæ vilesceret*. Thirdly, it very rarely did sit, lest it should draw the kings privie council from matters of state, *pro bono publico*, to hear private causes, and the principall judges from their ordinary courts of justice.

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3 H. 7. ca. 1.

That which now is next to be considered in *serie temporis* is the statute of 3 H. 7. the letter whereof followeth:

21 H. 8. ca. 20.
The president of
the kings coun-
cell added.

It is ordained that the chancelour and treasurer of England, and the keeper of the kings privy seal, or two of them, calling to them a bishop and a temporal lord of the kings most honourable privy counsell, and the two chief justices of the kings bench and common place for the time being, or other two justices in their absence, upon bill or information put to the said lord chancelour or any other against any person for unlawfull maintenance, giving of liveries, signs and tokens, and reteyners by indentures, promises, oaths, writings or otherwise, imbraceries of his subjects, untrue demeaning of sherifs in making of pannels, and other untrue returns, by taking of mony, by injuries, by great riots, and unlawfull assemblies, have authority to call before them by writ or privy seale the said misdoers, and they and other by their discretion, by whom the truth may be known to examine, and such as they find therein defective, to punish them after their demerits, after the form and effect of statutes thereof made in like manner and form as they should, and ought to be punished, if they were thereof convicted after the due order of law.

Camden Brit.

Camera stellatae auctoritatem prudentissimus princeps Henricus septimus ita parliamentaria adauxit et constabiliavit, nonnulli primum instituisse falso opinantur.

Upon this statute and that which formerly hath been said, these fix conclusions do follow. The first conclusion is, that this act of 3 H. 7. did not raise a new court: for there was a court of star-chamber, and all the kings privy council judges of the same. For if the said act did establish a new court, then should those four or any two of them be only judges, and the rest that they should call to them should be but assistants, and aidants, and no judges: for the statute of 31 E. 3. cap. 12. which raiseth a new court, and before